

		mailed to Defendant at the service address on or about April 22, 2025” (Carr Decl., ¶ 4.) However, the declaration does not state that a notice of entry of default or notice of entry of default judgment were sent to Defendant. For example, the declaration fails to identify what documents were included in the “default judgment packet.” Further, the declaration does not indicate if the documents were properly <i>served</i> (as opposed to just mailed) on the Defendant. Finally, it is not clear that Plaintiff’s Counsel has the personal knowledge or foundation to testify to this fact. The declaration does not include information about who mailed the default judgment packet and how they mailed it, nor does it include a proof of service for the default judgment packet. For this reason, Plaintiff had until “two years after entry of a default judgment” to file and serve his motion to set aside default. Judgment was entered against Defendant on May 6, 2025, so that this motion had to be filed and served by May 6, 2027. (See ROA #14.) Defendant filed the instant motion on March 4, 2026, so that it is timely. Therefore, the court will grant the motion to set aside and allow Defendant to file his answer. A stay of enforcement of the Default Judgment is unnecessary because the court will vacate the Default Judgment. Defendant shall give notice of this ruling.
8	Hendrix vs. Farshidi 30-2025-01451171	<u>Motion for Summary Judgment</u> Defendants Farnoosh Farshidi, M.D.’s and Farnoosh Farshidi, M.D. Inc.’s Motion for Summary Judgment is taken OFF CALENDAR pursuant Defendants Farnoosh Farshidi, M.D. and Farnoosh Farshidi, M.D. Inc.’s Notice of Taking Motion For Summary Judgment Off Calendar filed June 4, 2026 (ROA #49).

10	Cano vs. O'Grady 30-2024-01410607	<u>Motions for Sanctions</u> Defendant NM Law, APC's Motion for Terminating Sanctions, or in the Alternative, Issue Sanctions, Against Plaintiff Sharon Rachelle Cano for Violation of Court's February 5, 2026 Order re Form Interrogatories, Set One is GRANTED in part and DENIED in part. Defendant NM Law, APC's Motion for Terminating Sanctions, or in the Alternative, Issue Sanctions, Against Plaintiff Sharon Rachelle Cano for Violation of Court's February 5, 2026 Order re Special Interrogatories, Set One is GRANTED in part and DENIED in part. Defendant NM Law, APC's Motion for Terminating Sanctions, or in the Alternative, Issue Sanctions, Against Plaintiff Sharon Rachelle Cano for Violation of Court's February 5, 2026 Order re Requests for Production, Set One is GRANTED in part and DENIED in part. Plaintiff Sharon Rachelle Cano is ORDERED to pay is ORDERED to pay to Defendant NM Law, APC sanctions of reasonable attorney's fees in the amount of \$1,000 (4 hours x \$250 per hour) within 30 days of service of the notice of ruling. <u>Pending Motion</u> Defendant NM Law, APC, (Defendant NM Law) moves for terminating sanctions or evidentiary sanctions, as well as monetary sanctions and sanctions payable to the court, against Plaintiff Sharon Rachelle Cano based on Plaintiff's failure to comply with the court's February 5, 2026 order regarding form interrogatories, special interrogatories, and requests for production. <u>Standard for Non-Monetary Discovery Sanctions</u> The trial court has expansive authority over discovery issues. (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 596.) This authority includes the power to impose monetary, issue, evidence, terminating, or contempt sanctions against any person engaging in any misuse of the discovery process. (See Code Civ. Proc., § 2023.030, subd.s (a)-(e).)
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